

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.

v.

COSCO SHIPPING LINES CO., LTD.

v.

SAMSUNG ELECTRONICS CO., LTD, SAMSUNG SDS ASIA PACIFIC PTE LTD., AND
SAMSUNG ELECTRONICS LOGITECH CO., LTD.

**MOTION TO VOLUNTARILY DISMISS COUNTERCLAIM AND THIRD-PARTY
COMPLAINT**

Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) respectfully moves pursuant to Federal Maritime Commission Rules of Practice and Procedure 72(a)(3) and 72(c) (46 CFR § 502.72(a)(3) and (c)) to voluntarily dismiss COSCO’s counterclaim against Complainant Samsung Electronics America and its third-party complaint against Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte LTD., and Samsung Electronics Logitech Co.

Federal courts applying FRCP 41(a)(2) (the rule corresponding to FMC Rule 72(a)(3)) universally state that, to justify denial of a motion for voluntary dismissal, a court must find that the dismissal would inflict clear legal prejudice on a defendant. *Kellmer v. Raines*, 674 F. 3d 848, 851 (D.C. Cir. 2012); *Conafay v. Wyeth Labs.*, 841 F.2d 417, 419 (D.C. Cir. 1988) (collecting cases). SEA and the third-party respondents cannot claim legal prejudice and they themselves asked COSCO to withdraw its claims.

Accordingly, COSCO respectfully requests that the Presiding Officer dismiss COSCO's counterclaim and third-party complaint.

Dated: April 8, 2026

/s/ Gordon L. Lang

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Respectfully submitted,

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SO ORDERED

Dated:

Linda S. Harris Crovella
Administrative Law Judge

CERTIFICATE OF SERVICE

I hereby certify that on this 8th day of April, 2026, a true and correct copy of the foregoing **Motion to Voluntarily Dismiss Counterclaim and Third-Party Complaint** was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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